**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA**

In the matter of an Application for Bail under section 83 (2) of the Poisons, Opium and Dangerous Drugs (Amendment) Act No. 41 of 2022.

**CA Case No: BAL/370/2023**
**HC 1 - Colombo**
**Case No: HC 624/2019**

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

**Complainant**

**Vs**.

1. Mohomad Anvar Mohomad Ziyam
2. Nawasdeen Mohomad Zakir
3. Ratnayake Mudiyanselage Achala Kumari
4. Wickramasinghe Arachchilage Don Amarasiri alias Japan Chuti

**Accused**

**And Now**

Mohomad Anvar Mohomad Ziyam

**1st Accused - Petitioner**

**Vs.**

1. The Officer-in-Charge,
   Colombo Crimes Division (CCD),
   Dematagoda.

2. Hon. Attorney General,
   Attorney General's Department,
   Colombo 12.

**Complainant -Respondents**

**Before:** **R. Gurusinghe J.**

**&**

**M.C.B.S. Morais J.**

**Counsel:** Punarji Karunasekara for the Petitioner.

Lakmini Girihagama, DSG for the Respondents.

**Inquiry on**: 18.03.2024

**Decided On:** **14.05.2024**

**M.C.B.S. Morais J.**

The Petitioner is the Accused in the case bearing number HC 624/2019 in the High Court of Colombo. It is apparent that the Accused was indicted for having in possession and trafficking of Heroin 5947 grams and conspiring of aiding and abetting to traffic of heroin 5947 grams on or about between 01.03.2017 - 07.03.2017. It is apparent that, though the Accused made a bail application before the Learned High Court Judge, it was refused by the judge as there was no sufficient ground.

The Petitioner has made this application before us under section 83 of the Poisons, Opium and Dangerous Drugs (Amendment) Act, No.41 of 2022. As for the provisions of section 83(2),

> *"83(2) notwithstanding the provisions of sections 84 and 85, a person suspected or accused of an offence under subsection (1) of section 54A and section 54B-*
>
> *(a) of which the pure quantity of the dangerous drug, trafficked, imported, exported, or possessed is ten grams or above in terms of the report issued by the Government Analyst under section 77A; and*
>
> *(b) Which is punishable with death or life imprisonment, shall not be released on bail except by the Court of Appeal in exceptional circumstances."*

When applied in relation to the material before us, in paragraph 09 of the petition, the Petitioner pleads certain grounds which are alleged as exceptional grounds and they are as follows:

I. The case has not been taken up for trial for approximately 2 years from the date of leading of witness number 1 reason beyond the control of the petitioner and keeping the petitioner in the custody without a trial caused an exceptional ground to consider bail.
II. The petitioner is denied the substance of a fair trial namely the right to an expeditious trial by failing to take up the case for trial for nearly 2 years, causing an exceptional ground to consider bail.
III. The petitioner's family members' right to a reasonable life has been denied by keeping him in the custody for over 6 years without concluding the case against him causing an exceptional ground to consider bail.
IV. The police B report is completely misleading on several facts specially the humble and poor lifestyle of the petitioner who is a "Naatami" who lives with his family does not match that of a Narcotic peddler or anyone related to Narcotic smuggling.

In addition to the above exceptional grounds, in paragraph '10' of the petition petitioner pleads that the grounds mentioned in paragraphs 7 and 8 are also alleged as exceptional grounds and they are as follows.

V. Though the case was called on various days, it was not taken up for trial reasons beyond the control of the petitioner.
VI. All other suspects except himself got enlarged on bail and it would be unfair when the petitioner alone is incarcerated for more than 6 years as of filing the petition.

However, the Petitioner has refrained from mentioning anything on the character of him especially whether he has been convicted before, or whether he has any pending cases. Though previous conviction has no bearing upon finding the guilt of the person the character of the Accused is significant when it comes to the issue of bail.

A serious question arises as to the reason for nondisclosure especially in the light of proceedings before us indicate that the Accused has had a previous conviction for a similar offence.

It is apparent that the Accused has been convicted for having in possession of 65 milligrams of Heroin on 17th of May 2013. It is confirmed by page '356' of the High Court case record marked and submitted as 'X' by the petitioner.

As the Accused is also the Petitioner in this case, there is no possibility of him being unaware of the said previous conviction.

***Namunukula Plantations Limited V Minister of lands and Others*** SC Appeal No. 46/2008, Saleem Marsoof J. stated that;

*"If any party invoking the discretionary jurisdiction of a court of law is found wanting in the discharge of its duty to disclose all material facts, or is shown to have attempted to pollute the pure stream of justice, the court not only has the right but a duty to deny relief to such person.*

*In other words, he owes a duty of utmost good faith (uberrima fides) to the court to make a full and complete disclosure of all material facts and refrain from concealing or suppressing any material fact within his knowledge or which he could have known by exercising diligence expected of a person of ordinary prudence."*

As the Petitioner has breached his paramount duty of disclosing the relevant, I am of the view that the Petitioner does not deserve the reliefs prayed for, hence without proceeding to consider the merits on exceptional circumstances, this application for Bail is refused *in limine*.

**Judge of the Court of Appeal**

**R. Gurusinghe J.**

**I agree**

**Judge of the Court of Appeal**